

Court No. - 3

Case :- WRIT - C No. - 58711 of 2015

Petitioner :- Jor Singh

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- V.D. Dubey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Raghvendra Kumar,J.

By means of this petition, the petitioner has approached this Court challenging the legality and validity of the notice dated 19.6.2015 issued under section 3 of Recovery of Dues Act 1958 for a sum of Rs. 1,43,460/- as outstanding electricity charges.

It is admitted by the petitioner in the pleading that he has been unable to pay the electricity dues for the year from 2011 to 2014 .

Shri Baleshwar Chaturvedi, appearing for the respondents (corporation) on the basis of instructions states that in September, 2015 the total outstanding electricity dues against the petitioner is to the tune of Rs. 1,71,669/-

The petitioner is disputing the correctness of the amount on various grounds.

Under clause 6.5 of the U.P. Electricity Supply Code 2005, the petitioner has a remedy of making complaint before the competent authority in this regard.

Since the petitioner has a remedy available under the provisions of the U.P. Electricity Supply Code, 2005 and the dispute being raised before the Court is factual in nature, we feel appropriate that the petitioner may avail the remedy by approaching the authority provided under clause 6.5 of the U.P. Electricity Supply Code 2005 by making a complaint which shall be considered and decided by the authority concerned in accordance with the provisions prescribed therein.

With the above observations, the writ petition is finally disposed of

Order Date :- 29.10.2015

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